

SENATE No. 1398

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to create intensive stabilization and treatment units within the Department of Mental Health.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/12/2025</i>

SENATE No. 1398

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 1398) of Dylan A. Fernandes for legislation to create intensive stabilization and treatment units within the Department of Mental Health. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to create intensive stabilization and treatment units within the Department of Mental Health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 19 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by adding the following section at the end thereof: -

3 Section 25. There shall be, within the department of mental health, at least two intensive
4 stabilization and treatment units for patients who exhibit persistently aggressive or self-
5 destructive behavior or exhibit atypically, intensively violent behavior that requires specialized
6 care. One unit shall be designated for men and one unit shall be designated for women. Said
7 units shall be located at a specific and central location and be secured and physically separate
8 from other units. These units shall provide comprehensive evaluation, stabilization and
9 psychiatric treatment which shall include, but not be limited to: violence assessments, behavioral
10 management consultation, interpersonal conflict resolution strategies, critical incident
11 debriefings and transfer evaluations. These units shall include appropriate staffing levels to
12 address the needs of the patient population with an interdisciplinary staff, including but not

13 limited to registered nurses, clinical social workers, mental health workers, psychiatrists, clinical
14 psychologists and rehabilitation specialists, who have undergone specialized training to work
15 effectively with this patient population. Upon behavior stabilization, the staff on the unit shall
16 develop a plan for the safe and timely transfer of the patient out of the intensive stabilization and
17 treatment unit.